Notification Waiver Determination

Aula Energy – Additional interest in the Boulder Creek Wind Farm

Acquisition	Aula Energy Holdings Pty Ltd as trustee for the Aula Energy Asset Hold Trust and its wholly owned indirect subsidiary, BCWF 2 Holdings Pty Ltd, (**together, Aula Energy**) applied for a notification waiver in respect of Aula Energy's proposed acquisition of the remaining 50% interest in the Boulder Creek Wind Farm Project that it does not already own, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	24 June 2026

Parties to the Acquisition	The acquirer, Aula Energy, is a renewable energy developer established in 2023 which is wholly owned by funds managed by Macquarie Asset Management, an operating group of Macquarie Group Limited. Aula Energy owns five operational solar generation assets and has a number of other renewable energy projects in development. The Boulder Creek Wind Farm Project (**BCWF Project**) involves the development, construction, ownership and operation of a wind farm at Boulder Creek, located approximately 40 km southwest of Rockhampton and 5 km west of Mt Morgan in central Queensland. The BCWF Project is currently under construction with the first stage of completion anticipated to occur by November 2027. On completion, the BCWF Project will supply electricity on a wholesale basis to the National Electricity Market (**NEM**). Aula Energy has a pre-existing 50% interest in the BCWF Project. Under the Acquisition, Aula Energy will acquire the remaining 50% interest in the BCWF Project which is currently held by CS Energy, which is a Queensland-based Government-owned energy company. The Acquisition will increase Aula Energy's ownership of electricity generation assets in the NEM.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. post-Acquisition, Aula Energy's share in the supply of wholesale electricity generation in the NEM, including in Queensland, is estimated to be low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of wholesale electricity generation in the NEM, including in Queensland. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act